RE: [EXTERNAL] Meet-and-Confer – Protective-Order Motion (Civil Action No. CV-25-03367-PHX-SMB) Response Required by 12/9/2025

From kdturnage@protonmail.com <kdturnage@protonmail.com>

To Gray, Victoria (USAAZ)<Victoria.Gray2@usdoj.gov>

Date Tuesday, December 16th, 2025 at 2:03 PM

Date: December 16, 2025

To: Victoria Gray, Esq.

Assistant U.S. Attorney, District of Arizona

From: Kevin D. Turnage, Pro Se

Re: Denial of Extension Request

Dear Ms. Gray,

Thank you for your email dated December 15, 2025, requesting an extension of the government's deadline to respond to the Motion for Protective Order and Preliminary Injunction until December 19, 2025, so that it may be filed concurrently with the responsive pleading.[1]

Respectfully, I must decline to grant such an extension.

Since your initial response on December 2, 2025, indicating that you would speak with the agency and follow up, there has been no further effort to discuss, confer, or propose alternative language regarding the requested protective order. This absence of engagement—despite a clear December 9 deadline—further demonstrates that resolution without court intervention is not feasible and weighs against any additional delay.[2]

As detailed in the pending motion and supporting materials, retaliatory actions by the Indian Health Service ("IHS") have not abated but have continued in direct contravention of statutory whistleblower protections under 5 U.S.C. § 2302(b)(8) and related due-process requirements under 5 U.S.C. § 7513(b). The cumulative impact—including the imposition of indefinite "notice leave," denial of facility access, and lack of written justification—constitutes constructive suspension and ongoing harm warranting immediate judicial intervention.[3][4]

Given the irreparable harm demonstrated and the Court's authority under Fed. R. Civ. P. 65 and 28 U.S.C. § 1345, further delay would unjustly prejudice my rights and frustrate the purpose of injunctive relief. I therefore cannot agree to postpone the government's filing deadline.[5]

Please be advised that I will inform the Court of this correspondence and any continued retaliation as part of the ongoing request for emergency relief. I remain available to address the matter further at the direction of the Court.[6]

Respectfully,

/s/ Kevin D. Turnage
Kevin D. Turnage, MSN Ed, RN
Plaintiff, Pro Se
Email: kdturnage@protonmail.com
Phone: 901-220-8664
Dated: December 16, 2025

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[1] Fed. R. Civ. P. 6(b); *Namorato v. Town Sports Int'l*, 2021 WL 10336606 (D.N.Y. Dec. 15, 2021).

[2] Local Rule 7.2 (D. Ariz.); *Kostov v. Maricopa County Special Health Care District*, 2024 WL 10272021 (D. Ariz. Nov. 8, 2024).

[3] 5 U.S.C. § 2302(b)(8); 5 U.S.C. § 7513(b).

[4] *Robertson v. Millett*, 2023 WL 10001789 (D. Ariz. Jan. 6, 2023); 5 U.S.C. § 7512(2).

[5] Fed. R. Civ. P. 65; 28 U.S.C. § 1345.

[6] Fed. R. Civ. P. 65; 28 U.S.C. § 1345.

On Monday, December 15th, 2025 at 1:08 PM, Gray, Victoria (USAAZ) <Victoria.Gray2@usdoj.gov> wrote:

> Mr. Turnage:
>
> Would you agree to an extension of the PI response deadline to 12/19, so that the government can file the response to the PI with its responsive pleading?
>
> Thank you,
>
> Victoria Gray
>
> Mr. Turnage:
>
> I will speak with the agency and respond to your email as soon as possible.
>
> Thank you,
>
> Victoria Gray
>
> ---
>
> **From:** Kevin Dean Turnage <kdturnage@protonmail.com>
> **Sent:** Monday, December 1, 2025 8:55 PM
> **To:** Gray, Victoria (USAAZ) <Victoria.Gray2@usdoj.gov>
> **Subject:** [EXTERNAL] Meet-and-Confer – Protective-Order Motion (Civil Action No. CV-25-03367-PHX-SMB) Response Required by 12/9/2025
>
> **Re:** Protective-Order Motion – Request for Discussion

Dear Ms. Gray,

I am writing in **Civil Action No. CV-25-03367-PHX-SMB**, pending before the United States District Court for the District of Arizona.

I intend to file a M**otion for a Protective Order** to address ongoing concerns related to alleged retaliatory personnel actions and to prevent further irreparable harm. In accordance with the Court's Local Rule 7.2, I am reaching out to see whether the parties can resolve this matter without court intervention.

Accordingly, please let me know by ***Tuesday, December 9, 2025*** whether you have any objections, concerns, or proposed language for the protective order. If you have suggested revisions or alternative wording, I would be happy to consider them and work toward a mutually acceptable solution.

If I do not receive a response by the stated deadline, I will proceed to file the motion. In that filing I will attach a summary of this meet-and-confer effort to demonstrate compliance with Local Rule 7.2.

Thank you for your attention to this matter. I look forward to your prompt reply.

Respectfully,

/s/ Kevin D. Turnage

Kevin D. Turnage, MSN Ed, RN

Policy and Procedures Officer, GS-0610-12

Phoenix Indian Medical Center

Phone: 901-220-8664

E-mail: kdturnage@protonmail.com

Attached please find a draft of the protective-order motion (including the proposed order) that Plaintiff intends to file. The draft is provided for your review and comment. If you have any objections, suggested revisions, or are willing to stipulate to the language as-is, please let us know by Tuesday, December 9, 2025 so I can avoid filing a formal motion.

From: Gray, Victoria (USAAZ)
Sent: Tuesday, December 2, 2025 2:24 PM
To: 'Kevin Dean Turnage' <kdturnage@protonmail.com>
Subject: RE: [EXTERNAL] Meet-and-Confer – Protective-Order Motion (Civil Action No. CV-25-03367-PHX-SMB) Response Required by 12/9/2025

1.75 KB 1 file attached

publickey - kdturnage@protonmail.com - 0xCDB6543B.asc 1.75 KB